CHAPTER 1 Historical Background

The Britishers came to India in 1608 as traders, in the form of the East India Company, which had the exclusive right of trading in India under a charter granted by Queen Elizabeth I in 1600. In 1765, the Company, which till then had purely trading functions, obtained the 'diwani' (i.e., rights over revenue and civil justice) of Bengal, Bihar and Orissa[1]. This started its career as a territorial power. In 1858, in the wake of the 'sepoy mutiny', the British Crown assumed direct responsibility for the governance of India. This rule continued until India was granted independence on August 15, 1947.

With Independence came the need for a Constitution. Hence, a Constituent Assembly was formed for this purpose in 1946 and on January 26, 1950, the Constitution came into being. However, various features of the Indian Constitution and polity have their roots in the British rule. There were certain events in the British rule that laid down the legal framework for the organisation and functioning of government and administration in British India. These events have greatly influenced our constitution and polity. They are explained here in a chronological order under two major headings:

1. The Company Rule (1773–1858)
2. The Crown Rule (1858–1947)

THE COMPANY RULE (1773–1858)



Regulating Act of 1773

This act was of great constitutional importance as (a) it was the first step taken by the British Government to control and regulate the affairs of the East India Company in India; (b) it recognised, for the first time, the political and administrative functions of the Company; and (c) it laid the foundations of central administration in India.

The features of this Act were as follows:

1. It designated the Governor of Bengal as the 'Governor-General of Bengal' and created an Executive Council of four members to assist him. The first such Governor-General was Lord Warren Hastings.
2. It made the Governors of Bombay and Madras presidencies subordinate to the Governor-General of Bengal, unlike earlier, when the three presidencies were independent of one another.
3. It provided for the establishment of a Supreme Court at Calcutta (1774) comprising one chief justice and three other judges.
4. It prohibited the servants of the Company from engaging in any private trade or accepting presents or bribes from the 'natives'.
5. It strengthened the control of the British Government over the Company by requiring the Court of Directors (governing body of the Company) to report on its revenue, civil, and military affairs in India.